

Calendar Line 1

Case Name: *Estate of Azmy Ibrahim*

Case No.: 25PR199806

The above-entitled action comes on for hearing before the Honorable Theodore Zayner on August 7, 2026, at 10:00 a.m. in Department 13. Having reviewed and considered the written submissions of the parties and being fully advised, the Court now orders as follows:

INTRODUCTION

On April 18, 2025, Shereen Jarrett (“Petitioner”) initiated this action by filing a petition for letters of administration to administer the estate of her father, Azmy Ibrahim (“Decedent”). Decedent’s surviving spouse, Esther Alliota (“Objector”) opposed Petitioner’s petition and filed her own competing petition for letters of administration.

Currently before the court is Objector’s motion to compel further responses from Petitioner to her requests for production of documents, set one; requests for admission, set one; form interrogatories, set one; and special interrogatories, set one. Petitioner has opposed the motion¹ and Objector has filed a reply.

DISCUSSION

I. Legal Background

A. Requests for Production

A responding party to an inspection demand must respond separately to each item in the demand by stating one of the following: (1) an agreement to comply; (2) a representation of inability to comply, or (3) objections. (Code Civ. Proc., § 2031.210.) Additionally, Code of Civil Procedure section 2031.230 requires that a representation of an inability to comply with the particular demand for inspection must also “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand.” If a party demanding a response to an inspection demand deems: (1) a statement of compliance with the demand is incomplete; (2) a representation of inability to comply is inadequate, incomplete, or evasive; or

¹ The court notes that Petitioner also appears to have filed her own discovery requests. They bear a hearing date of August 7, 2026, the same date as the instant motion to compel. Petitioner has not filed a motion, nor has she secured a hearing date with the court. Accordingly, the court does not address Petitioner’s discovery requests.

(3) an objection in the response is without merit or too general, that party may move for an order compelling further response to the demand. (Code Civ. Proc., § 2031.310, subd. (a).)

In general, a motion for an order compelling further responses to requests for production of documents “shall set forth specific facts showing good cause justifying the discovery sought by the inspection demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) In order to establish good cause, the burden is on the moving party to show relevance to the subject matter and specific facts justifying the discovery. (See *Glenfed Develop. Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) Once a showing of good cause is made, the burden shifts to the opposing party to justify his or her objections. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.)

B. Requests for Admission

“On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply: (1) An answer to a particular request is evasive or incomplete. (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

C. Interrogatories

A responding party must provide non-evasive answers to interrogatories that are “as complete and straightforward...to the extent possible,” and, if after a reasonable and good faith effort to obtain the information they still cannot respond fully to an interrogatory, the responding party must so state in its response. (Code Civ. Proc., § 2030.220.) If the responding party provides incomplete or evasive answers, or objections without merit, the propounding party’s remedy is to seek a court order compelling a further response to the interrogatories. (Code Civ. Proc., § 2030.300.)

II. Merits of the Motion

In her initial responses, Petitioner responded to each of Objector’s requests for production, requests for admission, and form and special interrogatories with the same response: “Esther Ying Aliotta filed and said there were no assets, Esther Ying Huang Aliotta and her attorneys have blocked all my requests to my own family records. I served her through

her attorneys with interrogatories, asking about all the assets. Esther Ying Aliotta and her representing attorneys, have refused to answer. Without their answer, I cannot know how to respond because it's unintelligible and in bad faith.” After Objector filed the instant motion, Petitioner served supplemental responses to the requests for admission and form and special interrogatories. She did not serve supplemental responses to the requests for production.

As to the discovery requests other than the requests for production, Objector contends that the responses remain insufficient because they are evasive and consist primarily of objections that have been waived. The failure to assert a specific objection in an initial discovery response waives that particular objection. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1125, citing *Stadish v. Superior Court* (1999) 71 Cal.App.4th 1130, 1141.) Here, Petitioner's initial responses stated only that she could not respond to the discovery requests because she did not have access to certain records and she needed Objector to respond to discovery first. This did not preserve all of the objections Petitioner raises in her supplemental discovery responses. Moreover, Petitioner has not attempt to defend her objections in her opposition to the motion. (*Coy v. Super. Ct.* (1962) 58 Cal.2d 210, 220-221 [If a timely motion to compel is filed, the burden is on the responding party to justify any objection or failure to fully answer the discovery requests other than requests for production.].) Accordingly, Petitioner must serve amended responses with all objections removed.

As to the requests for production, Objector has shown good cause for the further responses she seeks. Specifically, the requests pertain either to Petitioner's responses to Objector's special interrogatories or to issues raised in this case. The parties' dispute centers around whether Decedent died with any probate assets or whether all assets pass outside of probate and who should be appointed as administrator if probate administration is necessary. Here, the requests for production generally request documents related to these questions. At the same time, the responses do not comply with the Civil Discovery Act. As mentioned above, a party responding to an inspection demand must respond separately to each item in the demand by stating one of the following: (1) an agreement to comply; (2) a representation of inability to comply, or (3) objections. (Code Civ. Proc., § 2031.210.) Here, any objections not previously

raised are waived. Accordingly, Petitioner must serve supplemental responses that state whether she will comply or whether she lacks the ability to comply. Code of Civil Procedure section 2031.230 requires that a representation of an inability to comply with the particular demand for inspection must also “affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with the demand.”

The motion to compel further responses is GRANTED. Petitioner must serve objection-free, code-compliant further responses to Objector’s requests for production, set one; requests for admission, set one; form interrogatories, set one; and special interrogatories, set one, within 30 days of the date of the court’s final order on this matter.

Objector also requests sanctions in the amount of \$5,100, consisting of \$5,040 in attorney fees (nine hours of attorney time at \$560 per hour), plus a \$60 filing fee. The statutes governing the instant motion provide for mandatory sanctions against a party unsuccessfully opposing such a motion, unless the court finds that “the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (See §§ 2030.300, subd. (d); 2031.310, subd. (h); 2033.290, subd. (d).)

Petitioner contends that the court should not order sanctions because the motion is moot due to her service of supplemental responses. But, the court retains jurisdiction to order sanctions under these circumstances. (See *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408-409.) Petitioner also argues that she acted with substantial justification and that her “delayed verification” is a result of an oversight rather than a willful failure to comply. Here, Petitioner responded to all of the discovery requests at issue with the same blanket response, providing no information whatsoever and did not file supplemental responses until after Objector made her motion to compel. Petitioner provides no justification for such actions. The court notes, however, that “the unjust exception ‘may excuse monetary sanctions where the party to be sanctioned is impoverished and monetary sanctions would cause a hardship disproportionate to the discovery misuse.’ [Citation.]” (*Kwan Software Engineering, Inc. v. Hennings* (2020) 58 Cal.App.5th 57, 77.) Petitioner maintains that she lacks the funds to pay sanctions and that the imposition of sanctions would constitute “extreme financial oppression and a miscarriage of justice.” Here,

the discovery abuse, while unjustified is not so severe that sanctions are warranted under the circumstances.² The request for sanctions is DENIED.

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CONCLUSION

Objector's motion to compel is GRANTED. Petitioner must serve objection-free, code-compliant further responses to Objector's requests for production, set one; requests for admission, set one; form interrogatories, set one; and special interrogatories, set one, within 30 days of the date of the court's final order on this matter. Objector's request for sanctions is DENIED.

Moving party shall prepare the Order.

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² The court notes that Petitioner has provided no evidence of the alleged financial hardship. But, her opposition is signed under penalty of perjury. Accordingly, for the purposes of this motion, the court accepts Petitioner's representations. Nonetheless, the court will consider imposing sanctions if the discovery abuse continues.

Calendar Line 2

Case Name: *Schwartz Family Trust*

Case No.: 21PR191181

The above-entitled action comes on for hearing before the Honorable Theodore Zayner on August 7, 2026, at 10:00 a.m. in Department 13. Having reviewed and considered the written submissions of the parties and being fully advised, the Court now orders as follows:

INTRODUCTION

On October 5, 2021, Petitioner Cindy Schwartz (“Petitioner”) initiated this action by filing a petition to remove the trustees of the Schwartz Family Trust (“the trust”), Paula Block Susan Friedman, and Betsy Schwartz (“Trustees”).³ On April 4, 2022, Trustees filed an objection to Petitioner’s petition. On June 9, 2022, Petitioner filed an amended petition and on June 17, 2022, Trustees filed an amended objection. On June 20, 2022, Petitioner filed a document titled “Petitioner’s Petition to Remove Trustees from the Schwartz Family Trust.”

On June 30, 2022, the court (Hon. Jacqueline Arroyo) held a hearing and took the matter under submission. The court issued its written order denying Petitioner’s petition to remove Trustees for lack of evidentiary support on September 29, 2022.

Between October 12, 2022 and June 20, 2024, Petitioner filed a plethora of documents, some purporting to appeal the court’s September 29, 2022 order and some purporting to be objections to that same order. None of these were noticed for hearing. Petitioner also filed two requests for dismissal of her “petition” on March 14, 2024 and January 14, 2025. Both requests were denied, the first because it was unclear which petition Petitioner was referring to and the other because the court had already denied the petition to remove trustees.

On August 7, 2025, Petitioner filed an untimely motion for reconsideration of the court’s September 29, 2022 order. The motion was denied via written order filed September 11, 2025. Petitioner filed a notice of appeal but the appeal, which had been assigned docket number H053863, was abandoned.

³ Betsy Schwartz passed away in 2024.